

Superior Court of the State of California
County of Orange

TENTATIVE RULINGS
DEPARTMENT C27
JUDGE BRADLEY ERDOSI

LAW AND MOTION IS HEARD ON MONDAYS AT 2:00 P.M.

Tentative Rulings: The Court endeavors to post tentative rulings on the Court's website by 10:00 a.m. on the date of the afternoon hearing. However, ongoing proceedings or other pressing matters may delay the posting of tentative rulings. Additionally, tentative rulings may not be posted in every case. Please **do not** call the department for tentative rulings if tentative rulings have not been posted. The Court will not entertain a request to continue a hearing or the filing of further documents once a tentative ruling has been posted.

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Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings.

No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and OCLR 180.

TENTATIVE RULINGS
September 14, 2026

	Case Name	Tentative
101	2024-01372915 Ku vs. State Farm General Insurance Company	Motion for Summary Judgment and/or Adjudication Defendant State Farm General Insurance Company’s (“State Farm”) motion for summary judgment as to Plaintiffs Joseph Ku’s and Christine Ku’s First Amended Complaint (“FAC”) is granted. Defendant’s request for judicial notice is denied. It is unnecessary to ask the court to take judicial notice of materials previously filed in this case. A party may “simply call the court’s attention to such papers.” (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2023) ¶ 9:53.1a.) The Court overrules Plaintiffs’ evidentiary objections numbered 1-8 and sustains their objections numbered 9-12. The Court declines to rule on Defendant’s evidentiary objections pursuant to Code Civ. Proc., § 437c(q). “[F]rom commencement to conclusion, the party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law.” (<i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850.) “A prima facie showing is one that is sufficient to support the position of the party in question.” (<i>Id.</i> at p. 851.) A defendant moving for summary judgment satisfies his or her initial burden by showing that one or more elements of the cause of action cannot be established or that there is a complete defense to the cause of action. (Code Civ. Proc., § 437c, subd. (p)(2).) The scope of this burden is determined by the allegations of the plaintiff’s complaint. (<i>FPI Development v. Nakashima</i> (1991) 231 Cal.App.3d 367, 381-382 [pleadings serve as the outer measure of materiality in a summary judgment motion]; <i>580 Folsom Associates v. Prometheus Development Co.</i> (1990) 223 Cal.App.3d 1, 18-19 [defendant only required to defeat allegations reasonably contained in the complaint].) A cause of action cannot be established if the undisputed facts presented by the defendant prove the contrary of the plaintiff’s allegations as a matter of law. (<i>Brantley v. Pisaro</i> (1996) 42 Cal.App.4th 1591, 1597.) Alternatively, a moving defendant can show that a cause of action cannot be established by submitting evidence, such as discovery admissions and responses, that plaintiff does not have and cannot reasonably obtain evidence to establish an essential element of his cause of action. (<i>Aguilar v. Atlantic Richfield Co.</i>, <i>supra</i>, 25 Cal.4th at pp. 854-855; <i>Union Bank v. Superior Court</i> (1995) 31 Cal.App.4th 573, 590 [finding moving defendant may show plaintiff’s lack of evidence by factually devoid discovery responses after plaintiff has had adequate opportunity for discovery]; see <i>Scheiding v. Dinwiddie Constr. Co.</i> (1999) 69 Cal.App.4th 64, 80-81 [finding <i>Union Bank</i> rule only applies where discovery requests are broad enough to elicit all such information].) The evidence establishes that Plaintiffs’ claims are barred by the one-year statute of limitations set forth in Ins. Code, § 2071, which states in relevant part that “[n]o suit or action on this policy for the recovery of any claim shall be sustainable in any court of law or

equity unless all the requirements of this policy shall have been complied with, and unless commenced within 12 months next after inception of the loss.”

Plaintiffs reported their April 7, 2022, loss to State Farm on April 8, 2022. [UMF 5-6] On April 21, 2022, State Farm sent Plaintiffs a denial letter which included the following:

“The one-year period referred to does not include the time we take to investigate your claim. The time from the date of loss to the date you reported your claim to your agent does count in computing the amount of time that has already expired. The suit limitation period begins running again as of the date of this letter.”

[UMF 14-17] The letter additionally quoted the relevant portions of the insurance policy, which likewise stated that “[a]ny action must be started within one year after the occurrence of causing loss or damage. [UMF 4]

Accordingly, Plaintiffs’ deadline to file their Complaint was April 20, 2023.

The evidence does not support tolling of this deadline.

State Farm’s letter denying coverage, which was not submitted with Plaintiff’s FAC, but is now submitted as evidence in support of Defendant’s MSJ includes the following:

Our investigation and evaluation of your loss has determined that your damage is not covered by your policy.

You became aware of the problem when you found discoloration to the wood flooring in the dining room immediately outside the kitchen. Water was also seen coming through the seams of the wood floor in this same area when walked upon. Damage consists of heavy staining and deterioration of a section of baseboard, discoloration of a section of wood flooring, as well as mold on the drywall and cabinets.

Water was found leaking from the ice maker line at the back of the refrigerator. Our investigation found no evidence of any covered property damage resulting from a covered accidental direct physical loss. The predominate cause of the plumbing failure is due to one or a combination of wear, tear, deterioration and/or maintenance resulting in a continuous or repeated leakage or seepage of water.

Your policy HW2105 specifically excludes coverage for wear, tear, deterioration, continuous or repeated leakage or seepage or water, mold, workmanship, materials used in construction and maintenance...

(Defendant’s Ex. C [emphasis added].)

Plaintiffs allege in the FAC that they discovered water damage behind their refrigerator, and that the “denial letter attributed the plumbing failure solely to wear, tear, deterioration, or maintenance issues,” and neglected “to mention high water pressure as a cause of sudden water damages.” (FAC, ¶¶ 10, 12.)

Plaintiffs argue there is a distinction between the “wear, tear, deterioration and/or maintenance” to which Defendant attributed the loss, and the elevated water pressure that Plaintiffs discovered in October 2023 which also could have caused the loss. (PUMF 57; FAC, ¶¶ 12, 14.)

The Court disagrees. These causes of the damage are not mutually exclusive. Proper maintenance would ensure that the water pressure was within recommended limits for the plumbing in the house.

Contrary to Plaintiffs' arguments, Defendant's denial letter does not show that it misrepresented or concealed facts in order to justify tolling of the statute of limitations.

Plaintiffs rely on *Vu v. Prudential Property & Casualty Ins. Co.* (2001) 26 Cal.4th 1142, which is distinguishable as the insurance adjuster specifically represented the cost of repairs and how it was less than the policy deductible amount, advising the plaintiff not to file a claim. (*Id.* at 1152.)

Here, as the denial letter shows, State Farm informed Plaintiffs that their loss was not covered and that if they wished to file a claim they had one year to do so.

Plaintiffs additionally argue in opposition that the evidence does not establish that State Farm ever mailed the denial letter, referencing documents from State Farm's file pertaining to the claim. (See Plaintiffs' Ex. 4.) Each Plaintiff testified at their deposition that they did not recall receiving the denial letter. (Plaintiff's Exs. 6, 7.)

This argument lacks merit, as Plaintiffs specifically plead in the FAC that they relied on Defendant's denial letter of April 21, 2022 with respect to their claim. (FAC, ¶¶ 11-13, 41-43.) Plaintiffs cannot simultaneously claim reliance on a letter and also that they never received that letter.

Parties may rely on admissions of fact contained in the opposing party's pleadings as evidence. (*24 Hour Fitness, Inc. v. Sup.Ct.* (1998) 66 Cal.App.4th 1199, 1211; *Valerio v. Andrew Youngquist Const.* (2002) 103 Cal.App.4th 1264, 1271.) And, unequivocal admissions in pleadings are treated as "judicial admissions"—i.e., they are conclusive and cannot be controverted by the pleader. (See *Heater v. Southwood Psychiatric Ctr.* (1996) 42 Cal.App.4th 1068, 1079-1080, fn. 10.)

Plaintiffs additionally argue that even if the one-year statute of limitations bars the breach of contract and bad faith causes of action, it does not bar the misrepresentation and unfair competition claims as those are subject to different statutes of limitations.

But, Plaintiffs' allegations in their FAC in the 3rd-5th causes of action are all predicated on Defendant's denial of coverage. (See FAC, ¶¶ 34-38, 41-43, 2[sic]; see also *Prieto v. State Farm Fire & Casualty Co.* (1990) 225 Cal.App.3d 1188, 1196 (the court held that "plaintiffs' bad faith cause of action based on failure to pay benefits, and the emotional distress cause, which is merely a theoretical restatement of the same claim [] are governed by the one-year limitation prescribed by section 2071 for actions on the policy."); *Rosenberg-Wohl v. State Farm Fire & Casualty Co.* (2024) 16 Cal.5th 520, 536 ("we agree with these decisions that the prescribed limitations period applies to a cause of action for damages that is 'inextricably bound' [] to a denial of coverage, even if the cause of action is alleged to sound in tort instead of contract and a plaintiff alleges resulting damages going beyond the withheld policy proceeds.").)

Accordingly, the Court finds that Ins. Code, § 2071 applies to all of Plaintiffs' causes of action. The motion for summary judgment is granted.

Defendant shall give notice.

102	2023-01333212 Sampson vs. Rocha	Motion - Other Plaintiff Michelle Sampson filed what appears to be a motion on 6/5/26. (ROA 245.) There is no notice of motion that was filed. (See CRC, Rules 3.1110, 3.1112(a).) In addition, there is no memorandum of points and authorities. California Rules of Court rule 3.1113(a) states, “A party filing a motion . . . must serve and file a supporting memorandum.” That rule further states, “The court may construe the absence of a memorandum as an admission that the motion . . . is not meritorious and cause for its denial.” (Cal. Rule Ct., rule 3.1113(a).) It is not clear what Plaintiff is requesting; she notes only that a number of filed forms must be processed and references reimbursement. Altogether, Plaintiff’s “motion” is nonsensical. It is therefore denied. The Court notes that Defendant filed an untimely opposition on September 11, 2026. The Court did not review or consider the late opposition in ruling on Plaintiff’s motion. The clerk is ordered to provide notice to all parties.
103	2024-01405130 Torossian vs. FCA US, LLC.	Motion for Attorney Fees Continued to 10-19-26 at 2:00 p.m. in Department C27.
105	2025-01509775 Veliz vs. Feitosa	1. Demurrer to Cross-Complaint 2. Case Management Conference Cross-Defendants Antero Velez’s, individually, and as Trustee of the Antero Velez Living Trust’s unopposed demurrer to Cross-Complainant Benoate Feitosa’s Cross-Complaint is sustained with 15 days leave to amend. Cross-Complainant failed to file a timely opposition. It appears Cross-Complainant attempted to file a First Amended Cross-Complaint, thus impliedly conceding that the demurrer has merit. This, however, was rejected by the clerk’s office. In any event, failure to oppose the demurrer may be construed as having abandoned the original claims. (See <i>Herzberg v. County of Plumas</i> (2005) 133 Cal. App. 4th 1, 20.) Thus, the demurrer is sustained with leave to amend. Case management conference is continued to March 15, 2027 at 10:00 a.m. in Department C27. Moving party is ordered to give notice.
106	2023-01323759 Honarkar vs. Makhijani	1. Motion of Receiver 2. Motion to Expunge Lis Pendens <u>Motion of Receiver</u>

		Receiver Jeremy W. Faith’s unopposed motion for order (1) discharging the Receiver, (2) approving his final report and account, (3) barring future claims against the Receiver, the Receiver’s employees, and professionals, (4) exonerating the Receiver’s bond, and (5) retaining jurisdiction over all matters related to the receivership estate and exoneration of the bond is granted. [ROA #902.] The Receiver is to submit a proposed order and give notice of this ruling. <u>Motion to Expunge Lis Pendens</u> Intervenor Preferred Bank’s motion for order expunging the lis pendens (recorded in the office of the San Bernardino County Recorder as Instrument No. 2025-0199109 on August 21, 2025) recorded by plaintiffs Mohammad Honarkar and 4G Wireless, Inc. against real property formerly owned by Tesoro Redlands DE, LLC (“Tesoro LLC”), and commonly known as 106 West Pennsylvania Avenue, Redlands, California 92374 (Assessor’s Parcel No. 0167-151-24, the “Tesoro property”) is granted. Intervenor is awarded attorneys’ fees of \$21,137.40. [ROA ## 1039, 460.] Intervenor’s request for judicial notice is granted. [ROA #1035.] Intervenor is to submit a proposed order and provide notice of this ruling.
107	2025-01469424 Roggero vs. Serrano Water District	1. Demurrer to Amended Complaint 2. Motion to Strike Portions of Complaint 3. Case Management Conference <u>Demurrer</u> Defendants Serrano Water District and Jerry Vilander’s (“Defendants”) Demurrer to Plaintiff Vittorio Roggero (“Plaintiff”) Second Amended Complaint (“SAC”) is sustained in part and overruled in part. Defendants demur to the third cause of action for unlawful discrimination based on disability and to the fourth cause of action for unlawful harassment based on disability in the SAC. <u>3rd COA – Unlawful Discrimination (Disability)</u> Under the FEHA, it is unlawful to discriminate against an employee on the basis of a physical or mental disability. (See <i>Cornell v. Berkeley Tennis Club</i> (2017) 18 Cal.App.5th 908, 925.) Under the burden-shifting framework of <i>McDonnell Douglas Corp.</i>, the plaintiff must “first establish a prima facie case of discrimination by showing that ‘he or she (1) suffered from a disability, or was regarded as suffering from a disability; (2) could perform the essential duties of the job with or without reasonable accommodations[;] and (3) was subjected to an adverse employment action because of the disability or perceived disability.’” (<i>Id.</i> at p. 926, citation omitted.) Defendants demur to this claim on the grounds that Plaintiff does not allege he “currently suffers from a disability” (i.e., that Plaintiff suffered from ADHD at the time of his employment or that Defendants knew of any); or that any adverse actions were taken against him due to Vilander’s discriminatory animus on the basis of Plaintiff’s disability. (ROA 107 [Demurrer at pp. 5-7].)

		Plaintiff alleges he has ADHD, which limits major life activities, including his ability to work, but that he could perform his essential job duties with reasonable accommodations; and, that after he asked for accommodations and made a complaint about Vilander’s discriminatory comments about his disability, he was investigated and his employment was terminated. (See SAC at ¶¶ 9, 11, 17, 19, 40.) On demurrer, the court must liberally construe the complaint, accept all pleaded factual allegations as true, and draw all reasonable inferences in the plaintiff’s favor. (<i>Carroll v. City and County of San Francisco</i> (2019) 41 Cal.App.5th 805, 811.) Applying that standard, here, Court finds Plaintiff has sufficiently pleaded a claim for discrimination based on his alleged disability. <u>4th COA – Unlawful Harassment (Disability)</u> “To establish a prima facie case of unlawful harassment under FEHA, a plaintiff must show ‘(1) he was a member of a protected class; (2) he was subjected to unwelcome ... harassment; (3) the harassment was based on [the plaintiff’s membership in an enumerated class]; (4) the harassment unreasonably interfered with his work performance by creating an intimidating, hostile, or offensive work environment; and (5) [the employer] is liable for the harassment.’” (<i>Martin v. Board of Trustees of California State University</i> (2023) 97 Cal.App.5th 149, 170, citation omitted.) For the harassment to create a hostile work environment, plaintiff must show that “defendant’s conduct would have interfered with a reasonable employee’s work performance and would have seriously affected the psychological well-being of a reasonable employee.” “The law prohibiting harassment is violated ‘[w]hen the workplace is permeated with discriminatory intimidation, ridicule and insult that is “ ‘sufficiently severe or pervasive to alter the conditions of the victim’s employment and create an abusive working environment.’ ” ’” (<i>Ibid.</i>, citations omitted.) The Court finds Plaintiff’s allegations (e.g., being called a “spaz” or statements that Plaintiff used to take Ritalin) are not sufficient to show severe or pervasive conduct that altered the conditions of Plaintiff’s employment or interfered with his work performance. Accordingly, the demurrer to this claim is sustained. Unless Plaintiff can show that this defect can be cured, the Court intends to sustain the demurrer without leave to amend. Absent a showing that leave should be granted, Defendants are ordered to answer the SAC within 15 days of the hearing. <u>Motion to Strike</u> Defendants’ unopposed Motion to Strike Portions of Plaintiff’s SAC is granted. The references to 42 U.S.C. § 1983 in paragraphs 7 and 21 of the SAC are stricken. Case management conference is continued to February 22, 2027 at 10:00 a.m. in Department C27. Defendants are ordered to give notice of the aforementioned rulings/orders.
108	2018-01045532 Horwich - Trust	1. (P) Motion to Strike Costs 2. (P) Motion – Other 3. (P) Motion for Attorney Fees and Costs

MOTION TO STRIKE COSTS (ROA 2115)

Petitioners Jeffrey Horwich and Paul Horwich (collectively, "Petitioners") bring this motion (ROA 2115) to strike the Memorandum of Costs (ROA 2093) filed by Respondents Holly M. Emge, Emgee Law Group, and Chapman, DeLesk & Emge (collectively, the "Emge Respondents") in its entirety. Alternatively, Petitioners move to tax specific costs.

Motion to Strike Costs

Petitioners and the Emge Respondents dispute whether the Emge Respondents are "prevailing parties." However, such issue is irrelevant in a probate proceeding.

In a civil action, a prevailing party is entitled to recover costs as a matter of right. In a probate action, the trial court has discretion to award costs or not, as well as discretion to allocate costs between parties and estates.

Code of Civil Procedure section 1032(b) governs the award of costs in civil actions. It provides: "Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding."

Probate Code section 1002 governs costs in probate actions. It provides: "Unless it is otherwise provided by this code or by rules adopted by the Judicial Council, either the superior court or the court on appeal may, in its discretion, order costs to be paid by any party to the proceedings, or out of the assets of the estate, as justice may require." (Prob. Code § 1002.)

On 9/15/25, the court entered Judgment (ROA 2083) on Petitioners' Sixth Amended Petition (ROA 826). The Sixth Amended Petition brought three causes of action against the Emge Respondents, all of which were denied. The absence of the specific mention of an award for costs in the Judgment for the Emge Respondents is a mere oversight by the Court. Not only does the Judgment clearly reflect that the Emge Respondents are the prevailing parties, but the Court, in its discretion finds that the Emge Respondents should be awarded costs regardless.

The motion to strike the Emge Respondents' Memorandum of Costs (ROA 2093) in its entirety is **DENIED**.

Motion to Tax Costs

"In ruling upon a motion to tax costs, the trial court's first determination is whether the statute expressly allows the particular item and whether it appears proper on its face; 'if so, the burden is on the objecting party to show [the costs] to be unnecessary or unreasonable.'" (*Foothill-De Anza Community College Dist. v. Emerich* (2007) 158 Cal.App.4th 11, 29, citation omitted.)

"If the items in a cost memorandum appear proper, the verified memorandum is prima facie evidence the expenses were necessarily incurred by the defendant; the burden of showing an item is not properly chargeable or is unreasonable falls on the objector." (*Benach v. County of Los Angeles* (2007) 149 Cal.App.4th 836, 858.) On the other hand, items that are properly objected to are put in issue, and the burden of proof is on the party claiming them as costs. (*Ladas v. California State Auto. Ass'n.* (1993) 19 Cal.App.4th 761, 774–776.) Whether a cost item was reasonably necessary to the litigation is a question of fact for the

trial court to determine. (*Foothill-De-Anza Comm. College Dist. v. Emerich, supra*, 158 Cal.App.4th at pp. 29-30.)

Here, the court is satisfied that all costs listed in the Emge Respondent's Memorandum of Costs are proper. The inability to effectuate service does not negate the service costs incurred. Moreover, the fees incurred in preparing exhibits for trial is well justified in the Memorandum of Costs, as well as in the Opposition to this motion.

The motion to tax costs identified as items 33, 34, 73, 74, 76, 77, 78, and 79 is **DENIED**.

Counsel for the Emge Respondents is to ordered to give notice of this ruling.

MOTION TO STRIKE COSTS (ROA 2119)

Petitioners Jeffrey Horwich and Paul Horwich (collectively, "Petitioners") bring this motion (ROA 2119) to strike the Memorandum of Costs (ROA 2108) filed by Respondent Pamela Roossin ("Roossin") in its entirety.

The court exercises its discretion to consider the late-filed Opposition (ROA 2311) by Roossin.

Petitioners and Roossin dispute whether Roossin is a "prevailing party." However, such issue is irrelevant in a probate proceeding.

In a civil action, a prevailing party is entitled to recover costs as a matter of right. In a probate action, the trial court has discretion to award costs or not, as well as discretion to allocate costs between parties and estates.

Code of Civil Procedure section 1032(b) governs the award of costs in civil actions. It provides: "Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding."

Probate Code section 1002 governs costs in probate actions. It provides: "Unless it is otherwise provided by this code or by rules adopted by the Judicial Council, either the superior court or the court on appeal may, in its discretion, order costs to be paid by any party to the proceedings, or out of the assets of the estate, as justice may require." (Prob. Code § 1002.)

On 9/15/25, the Court entered Judgment (ROA 2083) on Petitioners' Sixth Amended Petition (ROA 826). The Sixth Amended Petition brought three causes of action against Roossin, all of which were denied. The absence of the specific mention of an award for costs in the Judgment for Roossin is a mere oversight by the Court. Not only does the Judgment clearly reflect that Roossin is the prevailing party, but the Court, in its discretion finds that Roossin should be awarded costs regardless.

The motion to strike Roossin's Memorandum of Costs (ROA 2108) in its entirety is **DENIED**.

Counsel for Roossin is to ordered to give notice of this ruling.

MOTION FOR ATTORNEY FEES (ROA 2101)

No tentative issued.

109	2025-01452129 NNN Capital Fund I, LLC vs. Mikles	1. Joinder 2. Motion for Judgment on the Pleadings 3. Motion for Summary Judgment and/or Adjudication 4. Order to Show Cause 5. Order to Show Cause 6. Order to Show Cause re: Terminating Sanctions 7. Case Management Conference No Tentative Issued.
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